

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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PD, an infant under the age of 14 years by his mother
and Natural Guardian, SERENA MATTHEWS,
and SERENA MATTHEWS, Individually

Index No.: 025782/2020E

Plaintiffs,

AMENDED
VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Lt. FRANCY MONESTIME, and
POLICE OFFICERS JOHN AND JAMES DOE, meant to
designate offending officers, Individually and in their
official capacities,

Defendants.

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Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS PD AND SERENA MATTHEWS

1. At the time of the commencement of this action, plaintiffs PD and SERENA MATTHEWS were and still are residents of the County of Bronx, City and State of New York.
2. That plaintiff SERENA MATTHEWS is the mother and natural guardian of the infant PD.

3. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

4. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

5. That the CITY OF NEW YORK maintains a Police Department.

6. That on and about July 28, 2019 Lt. FRANCY MONESTIME [then Sgt. FRANCY MONESTIME and hereinafter referred to as [Lt. FRANCY MONESTIME], was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

7. That on and about July 28, 2019, at approximately 8 P.M., Lt. FRANCY MONESTIME was working and acting within the scope of his employment as a Police Officers, and under the color of law.

8. That on and about July 28, 2019, OFFICERS JOHN AND/OR JAMES DOE, as hereinafter referred to, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

9. That on and about July 28, 2019, at approximately 8 P.M., said OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officers, and under the color of law.

10. That on or about July 28, 2019 at approximately approximately 8 P.M., the infant plaintiff was lawfully present at or near the vicinity of The Slattery Playground, bounded by Ryer Avenue, East 183rd Street and Valentine Avenue, Bronx, New York.

11. That near the above time and approximate place the infant plaintiff became aware from a distance that an interaction with police officers with youth was occurring. The infant Plaintiff then saw what appeared to be a mob of people being chased by the police in his direction. This frightened the infant plaintiff, who was 11 years of age, so he turned and ran into the above mentioned playground.

12. The Infant Plaintiff was then tacked from behind by Lt. FRANCY MONESTIME and plaintiff landed face down on the ground. This caused plaintiff to begin crying. Lt. FRANCY MONESTIME then immediately handcuffed the 11 year old infant plaintiff without justification.

13. The offending officer is described as best as can be ascertained at this time, as an African-American male in patrolman's uniform, perhaps with three blue inverted 'V's

on it, indicating a rank of sergeant, approximately 6 feet tall, average to muscular build with close cropped hair, now believed to be Lt. FRANCY MONESTIME.

14. That Lt. FRANCY MONESTIME did utilize unnecessary unjustified excessive force upon the infant plaintiff, which constituted an assault and battery upon plaintiff.

15. That upon information and belief, Lt. FRANCY MONESTIME did transfer custody of the infant plaintiff to another officer in an attempt to hide his identity from scrutiny, responsibility and service of process.

16. The failure of other officers of the New York City Police Department present and in witness of the events detailed here, who were in a position to but did not intercede to prevent the insults described herein, were grossly negligent and reckless thereby.

17. That on or about July 28, 2019 at approximately approximately 8 P.M., at or near the vicinity of The Slattery Playground, bounded by Ryer Avenue, East 183rd Street and Valentine Avenue, Bronx, New York, the infant plaintiff PD was assaulted and detained and/or improperly arrested and confined without privilege, warrant, proper authority nor justification, having no reason in law or in fact to assault, arrest or confine PD.

18. That the defendants CITY OF NEW YORK, Lt. FRANCY MONESTIME and POLICE OFFICERS JOHN AND JAMES DOE arrested the plaintiff PD without any basis in law or fact and without reasonable, probable or just cause or justification.

19. That the defendants, their agents, servants and/or employees arrested the plaintiff PD without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
20. That the defendants, their agents, servants and/or employees unlawfully arrested, searched and detained the plaintiff PD, who was aware of his unlawful detention and confinement, and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.
21. That plaintiff PD was forcibly detained, including being restrained by hand cuffs and by other means, which necessarily constituted an additional unwanted touching, thereby assaulting and battering plaintiff PD.
22. That plaintiff PD was transported to the 46th Police Precinct where he was placed in a room, still restrained by handcuffs. The infant plaintiff continued through this period of time to cry and be in clear distress.
23. The infant plaintiff provided his mother, SERENA MATTHEWS's phone number to the present officers, however, SERENA MATTHEWS never did receive a call from any police officers on that day.

24. Plaintiff SERENA MATTHEWS became aware of the infant plaintiff's detention through a relative and immediately went to the 46th Precinct. Plaintiff SERENA MATTHEWS demanded entry into the 46th Precinct station house, but was denied entry and was denied in her attempts to immediately see her 11 year old son.

25. An ambulance was called to the 46th Precinct, and when Plaintiff SERENA MATTHEWS saw the ambulance attendants enter the station house, she was caused even more distress because she was not told if it was her son who required immediate medical attention.

26. After approximately one agonizing hour, the infant Plaintiff was removed from the station house and brought outside to his mother, Plaintiff SERENA MATTHEWS.

27. Thereafter, plaintiff Plaintiff SERENA MATTHEWS received a letter, dated January 9, 2020, from the New York City Police Department and signed by a Commanding Officer which stated that a record of the incident would be maintained until the infant Plaintiff reached either the age of 17 or 18 years, and which indicated that the alleged offense was Disorderly Conduct, and stated that Plaintiff SERENA MATTHEWS was expected to be reasonable diligent in the supervision of her child to prevent neglect, delinquency or conduct that may prove harmful to the child.

28. The aforementioned letter caused additional emotional injury to Plaintiff

SERENA MATTHEWS.

29. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest/detain the infant plaintiff without probable or reasonable cause nor warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff PD was consciously aware of and did initiate a criminal proceeding without probable cause maliciously.

30. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting/detaining innocent citizens, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, to obtain overtime pay and/or for employment advancement and/or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

31. That said illegal and unlawful detentions/arrests of innocent persons without reasonable or probable cause and conducting searches in public and while in custody are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the

offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

32. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeen, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

33. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

34. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

35. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting /detaining innocent persons for such charges as disorderly conduct in ill-fated attempts at justifying their own misconduct, or in retaliation for legal behaviors not to the arresting officers liking, and in an effort to subjugate certain minority male populations as an excuse for selectively enforcing supposed 'quality of life' violations.

36. Said practice and procedure of falsely arresting innocent persons on such charges as disorderly conduct is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs in retaliation and in ill-fated attempts at justifying their own wrongful conduct.

37. Furthermore, a recent report and analysis conducted by the New York City Civilian Complaint Review Board, found at https://www1.nyc.gov/assets/ccrb/downloads/pdf/policy_pdf/issue_based/CCRB_YouthReport.pdf and respectfully

incorporated herein, found that 64% of civilian complaints against New York City police officers were filed by or on behalf of young black people ages 8 to 18 who claimed to have been mistreated after being stopped for innocuous activities. The Board analyzed 112 completed investigations between Jan. 1, 2018 and June 30, 2019, showing an overwhelming number (nearly 90%) of grievances involved children of color (black and Hispanic youth). The report also found that the number of complaints by youth of color was significantly larger than in the overall population (69.1%) and that nearly half of the complaints (46.3%) came from or were made on behalf of black male youth.

38. Among the complaints probed [A] was a March 2018 incident in which a group of black and Hispanic boys was stopped by multiple police officers simply for talking, laughing and playing with sticks picked up off the ground as they walked home, according to the report. A lieutenant had two of the boys, an 8-year-old and a 14-year-old, whom officers saw running with sticks in their hands handcuffed and taken to a police station in tears, according to the report; [B] An 11-year-old black boy who was stopped and frisked by an undercover officer after they saw him shaking hands with and high-fiving a group of adults he knew in a housing project; [C] A 16-year-old Hispanic boy stopped for jaywalking by an officer and a sergeant in plainclothes and searched without probable cause, according to the report. [D] A 15-year-old black boy was holding a deli bag and walking to a homeless shelter when a plainclothes detective and sergeant in an unmarked vehicle ordered him to stop without announcing they were police. The teenager ran but was tackled and handcuffed, suffering injuries.

39. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein

40. While numerous high profile cases demonstrate this practice, such as the de minimis discipline of the police officers who caused or contributed to the deaths of Anthony Baez, Amadou Diallo, Ousmane Zango, Sean Bell, Ramarley Graham, Patrick Dorismond, Akai Gurley and Noel Polanco or, for instance, the assault upon James Blake, thousands of other individuals have been victims of this practice, including the Plaintiff herein, who garner no publicity but who are necessarily known by the Defendants by virtue of the claims and actions brought and filed against such officers

who engage in such nefarious and brutal actions yet receive little or no repercussions or discipline as detailed above.

41. That no negligence or actions on the part of the plaintiff PD contributed to the occurrences alleged herein in any manner whatsoever.

42. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

43. That as a result of the foregoing, the plaintiff PD was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFFS PD AND SERENA MATTHEWS

44. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 43 as though more fully set forth herein.

45. That on September 16, 2019 plaintiff caused a Notice of Claim to be presented to the defendant CITY OF NEW YORK, by providing a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

46. At least thirty (30) days have elapse prior to the commencement of this action and adjustment of payment thereof be neglected or refused by the defendant.

47. Defendant did notice and demand a General Municipal Law §50-h hearing and plaintiffs did appear and testify at said hearing on December 5, 2019.

48. This action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based or within the time allowed by law.

49. That on or about July 28, 2019 at approximately 8 P.M., at or near the vicinity of The Slattery Playground, bounded by Ryer Avenue, East 183rd Street and Valentine Avenue, Bronx, New York, the plaintiff PD was improperly detained/arrested and confined without privilege, knowledge of warrant, proper authority, justification nor reasonable or probable cause, having no reason in law or in fact to arrest PD.

50. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff PD of Due Process under Law.

51. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, Lt. FRANCY MONESTIME, POLICE OFFICERS JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the

defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

52. That the plaintiff PD, being aware of his unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, Lt. FRANCY MONESTIME and POLICE OFFICERS JOHN AND/OR JAMES DOE.

53. That no negligence or actions on the part of the plaintiff PD contributed to the occurrences alleged herein in any manner whatsoever.

54. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

55. That as a result of the foregoing, the plaintiff PD was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFFS PD AND SERENA MATTHEWS

56. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 55 as though more fully set forth herein.

57. That during his aforesaid arrest, the defendants, their agents, servants and/or employees utilized unnecessary, excessive and unjustified force against the plaintiff PD.

58. That the actions herein described, by the defendants, their agents, servants and / or employees , constituted an assault and battery upon Plaintiff PD.

59. The defendants did physically restrain the infant plaintiff with handcuffs, causing pain and distress, and constituted a further unwanted touching and assault and battery upon the infant plaintiff.

60. As a result of the aforesaid assault, plaintiff PD received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

61. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

62. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

63. That as a result of the foregoing, the plaintiff PD was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF SERENA MATTHEWS

64. That plaintiff SERENA MATTHEWS repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 63 as though more fully set forth herein.

65. That at all times hereinafter mentioned the plaintiff SERENA MATTHEWS was and is the mother and natural guardian of the infant plaintiff PD and as such was entitled to the services, society and companionship of the infant plaintiff.

66. That the actions detailed herein, including assault upon the 11 year old infant plaintiff, his handcuffing, his detention, the failure to call SERENA MATTHEWS or let her enter the station house to see her son, the failure to provide information about his well being, the calling of an ambulance to the precinct without information about the infant plaintiff's well being, the letter sent that implied some responsibility or conduct on SERENA MATTHEWS's part that contributed to the infant plaintiff's detention, the keeping of a record of the incident with the proviso that the infant plaintiff was charged with Disorderly Conduct, is so abhorrent, so beyond all bounds of human decency, so

atrocious and utterly intolerable in a civil society, so void of privilege, that those who directed, controlled, placed and caused these actions caused plaintiff SERENA MATTHEWS to suffer from intentionally inflicted severe emotional distress.

67. That by said actions and/or omissions Defendants acted intentionally, recklessly, willfully, maliciously and deliberately.

68. That the aforesaid conduct by the Defendants was extreme and outrageous.

69. That the aforesaid conduct by the Defendants was undertaken with the intent to cause, or with disregard of a substantial probability of causing, severe emotional distress.

70. That plaintiff SERENA MATTHEWS was injured thereby, and thereby caused severe emotional distress.

71. That in consequence of the defendants' negligence, plaintiff's child was severely injured and was treated at and by various medical personnel, and that said plaintiff was obligated to, and did, employ various medical aid and attendance for the child and did necessarily pay and become liable therefore, and will be obliged to expend further monies for said purposes in the future; that said plaintiff did render services in caring for the child; and that said parent was deprived the services of the child during the

incapacitation and that the child will be less able to render services to said plaintiff by reason of the lasting effects of the injuries.

72. That said plaintiff was and will be forced to observe the suffering of her child and will be emotionally disturbed by the same.

73. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

74. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

75. That as a result of the foregoing, the plaintiff SERENA MATTHEWS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFFS PD AND SERENA MATTHEWS

76. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 75 as though more fully set forth herein.

77. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

78. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and in the proper use of force.

79. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff PD was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiffs' damage in sums which exceed the jurisdiction of all lower Courts.

80. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demand judgment against the Defendants on the First
Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and
attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower
Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.

August 31, 2020



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiffs

PD and SERENA MATTHEWS

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To:

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ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiffs,

PD AND SERINA MATTHEWS

I have read the annexed

AMENDED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiffs is that affirmant is presently maintaining his office outside of the county wherein plaintiffs resides due to the NY PAUSE.

DATED: Bronx, N.Y.

August 31, 2020



JONATHAN L. GLEIT, ESQ.